

26PSCV00602 26PSCV00602

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-09-11

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Case Number: 26PSCV00602 Hearing Date: September 11, 2026 Dept: G

Plaintiff Creditors Adjustment Bureau's Application
for Default Judgment

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Creditors Adjustment Bureau's Application for Default Judgment is DENIED
WITHOUT PREJUDICE.

BACKGROUND

This

is an action for breach of contract. On

February 19, 2026, plaintiff Creditors Adjustment Bureau, Inc. (Creditors
Adjustment Bureau) filed the Complaint, alleging causes of action for (1)–(2)
breach of contract.

On

July 1, 2026, the court entered default against defendant HDZ Roofers, Inc.
(HDZ Roofers). On July 30, 2026, Creditors
Adjustment Bureau filed this application for default judgment.

The

application is set for hearing on September 11, 2026.

LEGAL STANDARD

Code

of Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. A party seeking judgment on the default by the court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800.)

ANALYSIS

Creditors

Adjustment Bureau seeks default judgment against HDZ Roofers in the total amount of \$1,101,633.34, including \$613,345.43 demanded in the Complaint, \$375,004.36 in treble damages, \$112,719.95 in interest, and \$574.60 in costs. (See 7/30/2026 CIV-100, ¶ 2.) Creditors Adjustment Bureau provides

sufficient evidence to prove its damages.

(See 7/30/2026 Inniss Decl., ¶¶ 1–12; see also 7/30/2026

Inniss Decl., Exhs. 1–4.) In the court's

previous ruling, the court noted that Creditors Adjustment Bureau did not

include a CIV-050 Statement of Damages in its default judgment package. (See 7/24/2026 Min. Order, p. 1.) Even though Creditors Adjustment

Bureau includes a CIV-050 in its new default judgment package, there is no

record that it served HDZ Roofers with the CIV-050. (See 7/24/2026 Order Final Ruling, p. 1, citing 4/21/2026

POS, ¶ 2, which reflects that Creditors Adjustment Bureau did not serve HDZ

Roofers with a CIV-050 Statement of Damages; see also Code Civ. Proc.,

§§ 425.11, 425.115.)

Accordingly,

the application for default judgment is DENIED WITHOUT PREJUDICE.

CONCLUSION

For these reasons, the application for default judgment is DENIED WITHOUT PREJUDICE.